

-

File No.: EXP202204836

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 9, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against EASYJET AIRLINE COMPANY LIMITED (hereinafter referred to as the respondent). The initiation agreement was notified, and after analyzing the allegations presented, on November 3, 2023, the proposed resolution was issued, which is transcribed below:

<<

File No.: EXP202204836

PROPOSED RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On March 21, 2022, a document was submitted to this Agency by A.A.A. (hereinafter, the complainant), in which a complaint is made against EASYJET AIRLINE COMPANY LIMITED with NIF N0066592G (hereinafter, EASYJET), for a possible breach of the provisions of the personal data protection regulations.

The reasons on which the complaint is based are as follows:

“Good morning.

On December 28, I requested access to my data in exercise of my right of access from Easyjet, in the context of a complaint for non-compliance with Regulation (EC) No. 261/2004, for all data related to myself in their possession, in addition to those related to said file. I only received a mere acknowledgment of receipt on December 30 of the same year. To this day, I have not received any response to my request.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/19

On March 18, I made a reminder to the company, and they responded by disavowing the access request, denying its existence, despite the acknowledgment of receipt.”

Along with the complaint, the following documentation is provided, among others:

- Email from the complainant, dated December 28, 2021, sent to the email addresses ***EMAIL.1 and ***EMAIL.2, with the subject “Complaint Regulation (EC) No. 261/2004 - Request for Right of Access.” Its content refers to a complaint filed by the complainant regarding the fact that they were denied boarding on a flight of the company, as well as to the request for the exercise of their right of access.
- Email from the address ***EMAIL.2, dated December 30, 2021, indicating that the previous email will be forwarded to the competent team for consultation, but that, due to the holiday period, the response may be delayed.
- Email from the address ***EMAIL.3, dated March 18, 2022, with the following content:

“Dear Mr. A.A.A.,

Thank you for your response.

Please note that we are a different department and that we have not received any request related to Data Protection Policy on your behalf. We are only responsible for the Data Protection Policy part, and our team does not handle complaints.

Please let us know if you would like to receive the information that easyJet has about you in a subject access request, and we will be happy to assist you.

For any other issue or complaint you may have, the Privacy team cannot assist you.

Please note that if we do not receive a response within 17 days, your request will be automatically

filed. (...)"

- Email from the complainant, dated March 18, 2022, sent to the email addresses ***EMAIL.3 and ***EMAIL.4, in which they respond "here is the receipt of the request received by your team (...)"

SECOND: In view of the reported facts, on April 21, 2022, this Agency accessed the website ***URL.1, verifying that the privacy policy indicates the contact address ***EMAIL.2. However, to "exercise any of your rights regarding the data that easyJet holds about you," a specific form is enabled.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/19

In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), on 03/06/2022, the aforementioned complaint was forwarded to EASYJET, so that it could proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 06/06/2022 as evidenced by the acknowledgment of receipt in the file.

THIRD: On 21/06/2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On 05/07/2022, a response was received by this Agency in which the following was stated: "[...]"

Second.- Notwithstanding the above and in relation to the content of your request, it should be noted that on Easyjet's website there is a specific form for users to exercise their rights under the GDPR of access, information, rectification, and erasure, as shown below.

Likewise, the email address made available to users for any matters related to GDPR rights is as follows: ***EMAIL.2. (...)

Third.- However, as deduced from the information provided by the complainant in their annex No. 2, it appears that the emails requesting access were sent to a different email, specifically to ***EMAIL.3, as well as to the customer service address: ***EMAIL.4.

On the other hand, in the communications sent to my represented party, claims related to the compensation demanded as a result of the alleged denial of boarding suffered by the complainant have been confused with the request for the right of access to personal data, which may have altered the system for handling such requests.

Fourth.- Having explained the above and regarding the issues raised to this party in your request, we proceed to respond to them in order:

1.

(...) A request was received that was not clear, and clarification was requested from the interested party.

2.

(...) The complainant was asked to adequately inform what their specific request was and to see what specific element in their case they wished to rectify in order to proceed accordingly.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/19

[...]"

FIFTH: On 09/03/2023, the Director of the Spanish Agency for the Protection of Data agreed to initiate sanctioning proceedings against EASYJET, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 15 of the GDPR, classified under Article 83.5.b) of

the GDPR.

This initiation agreement, which was notified in accordance with the rules established in the LPACAP through electronic notification, was received by EASYJET on 16/03/2023.

SIXTH: On 30/03/2023, EASYJET submitted a written response, in due time and form, to this Agency in which it stated the following:

"[...]

First.- That in the present procedure an initiation agreement has been issued establishing an initial fine of €20,000 as a consequence of the facts and infringement contemplated therein.

Second.- That following the provisions of the initiation agreement and in accordance with the provisions of Article 85 of the LPACAP, this party expresses its willingness to avail itself of the 40% reduction in the amount of the fine, expressly acknowledging responsibility in accordance with this and making the payment of the fine voluntarily, waiving the filing of any action or administrative appeal that may arise.

"[...]"

SEVENTH: On 05/05/2023, EASYJET submitted a new written response to this Agency in which it stated the following:

"[...]

Second.- Attention to the exercise of the complainant's right of access

As can be inferred from the timeline included in the previous Allegation, the Company attended to the exercise of the complainant's right of access on April 1, 2022, sending them all the information about themselves that it retained in its systems, as well as the information required by Article 15 of the GDPR.

For these purposes, a copy of the email through which the corresponding response was sent to the complainant, along with all the information made available to them, is attached as Annex II (see Annex I).

In accordance with the above, the Company wishes to emphasize that the request for the exercise of the right of access sent by the complainant to the Company was attended to by it prior to the receipt of the Request for Information (June 15, 2022) and, therefore, prior to the receipt of the Initiation Agreement (March 17, 2023).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/19

Third.- Other considerations

Furthermore, the Company wishes to emphasize that:

(i)

Although the complaint was initially filed by the interested party on December 28, 2021, it only included in its penultimate paragraph a mention of the exercise of their right of access under the GDPR. While it is true that the Company initially treated the Claimant's message as a mere claim for damages and not as an exercise of data protection rights, the Claimant also did not mention the exercise of their right in subsequent conversations with the Company's customer service team. In fact, they did not refer to the exercise of their right of access again until March 17, 2021, when they demanded payment of the compensations that had allegedly been recognized by AESA.

(ii)

Throughout the management of the Claimant's exercise of the right of access, the Company, as evidenced by the emails exchanged between the Company and the Claimant, a copy of which is attached as Annex I, received numerous warnings from the Claimant regarding the initiation of legal actions, including a mention of the possibility of withdrawing them if they received payment of the claimed amounts. In the Company's opinion, these messages and the lack of cooperation from the Claimant when the Company's data protection team contacted them to address their right indicate a lack of concern regarding this matter, suggesting that their sole intention was to collect the claimed

monetary amounts, which were in no way related to the protection of their fundamental right to data protection.

(iii)

Once the Claimant's request was received on March 17, 2021, the Company contacted them on two occasions (March 17 and 22, 2021) to apologize for the delay in responding to their exercise of the right of access. Along with the apologies, the Company's data protection team attempted to confirm with the Claimant their intention to exercise the right of access, clarify the scope of their request, ask if they wished to exercise any other right, and notify them that their request was being processed, as the initial request for the exercise of the right of access included within the claim for damages did not clearly indicate its scope.

(iv)

On April 1, 2021, only 9 business days after receiving confirmation from the Claimant of their desire to exercise their right of access and receive all the data that the Company held in its systems, the Company addressed this right and provided the requested information (see attached Annexes I and II). [...]

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

6/19

Along with the document, the following documentation is provided:

- An email sent by EASYJET from the email address ***EMAIL.3, dated 01/04/2022 at 10:22 hours, to the Claimant (***EMAIL.5), with the subject "Data Request - A.A.A." Its content refers to the information related to the exercise of the Claimant's right of access.

- A copy of the data stored in EASYJET's systems concerning the Claimant.

EIGHTH: A list of documents in the procedure is attached as an annex.

From the actions taken in this procedure and the documentation in the file, the following have been established:

PROVEN FACTS

FIRST: On 28/12/2021, at 22:34 hours, the Claimant sends an email (***EMAIL.5) to the addresses ***EMAIL.1 and ***EMAIL.2, with the subject "Claim Regulation (EC) No. 261/2004 - Request for Right of Access." Its content refers to a claim filed by the Claimant regarding the fact that they were denied boarding on a flight of the company, as well as the request for the exercise of their right of access.

SECOND: On 30/12/2021, at 0:45 hours, the Claimant receives an email from the address ***EMAIL.2, informing them that their request has been forwarded to the relevant department, but that, due to the holiday period, the response may be delayed.

THIRD: On 16/03/2022, at 0:13 hours, the Claimant sends an email to the addresses ***EMAIL.1 and ***EMAIL.2, with the subject "NOTICE OF LEGAL ACTIONS/COMPLAINT TO THE DATA PROTECTION AUTHORITY/AESA RESOLUTION/Re: Claim Regulation (EC) No. 261/2004 - Request for Right of Access." In the text, they inform the responding entity of the favorable ruling from the Spanish Agency for Air Safety regarding the expenses resulting from the denial to board and also state the following:

"Furthermore, in the absence of a response within the estimated time frame to the request for the exercise of the right of access provided for in the General Data Protection Regulation (EU), the corresponding complaint to the relevant data protection authorities is also announced."

FOURTH: On 17/03/2022, at 09:45 hours, EASYJET (***EMAIL.3) sends an email to the Claimant with the following content:

"Dear Mr. A.A.A.,
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

7/19

We are writing to you from the easyJet privacy team regarding your incident, specifically concerning your request related to Data Protection that you may have made with us. Unfortunately, this request never reached our team, and therefore, we would like you to clarify your original request so that we can resolve it promptly. Please respond directly to this email address. We appreciate your patience and apologize for this situation. We look forward to your prompt response in order to follow up on your request. Best regards, easyJet Data Protection Team.

On the same date, at 09:51 hours, the claimant responds as follows:

“Dear,

I have received acknowledgment of the request issued by your team. I take it for granted that once the grace period of one week that I have granted you has elapsed, I will report easyJet to the competent data protection authority.”

On the same day, at 10:45 hours, EASYJET responds to the claimant:

“Dear Mr. A.A.A.,

We are writing to you from the easyJet privacy team regarding your incident, specifically concerning your request related to Data Protection that you may have made with us. Unfortunately, this request never reached our team, and therefore, we would like you to clarify your original request so that we can resolve it promptly. Please respond directly to this email address. We appreciate your patience and apologize for this situation. We look forward to your prompt response in order to follow up on your request. Best regards, easyJet Data Protection Team.”

FIFTH: On 18/03/2022, at 11:50 hours, the claimant receives an email from the address ***EMAIL.3 in which, in summary, it is informed: “Please note that we are a different department and that we have not received any request related to Data Protection Policy on your behalf. We are only responsible for the Data Protection Policy part, and our team does not handle complaints. Please let us know if you would like to receive the information that easyJet has about you in a subject access request, and we will be happy to assist you. For any other issues or complaints you may have, the Privacy team cannot assist you. Please note that if we do not receive a response within 17 days, your request will be automatically archived. (...)”

On the same day, at 13:23 hours, the claimant sends an email to ***EMAIL.3 and ***EMAIL.4, informing of their intention to sue EASYJET before the corresponding judicial authority and before this Agency.

SIXTH: On 21/03/2022, at 12:13 hours, the claimant sends an email to the address ***EMAIL.3 and ***EMAIL.4, with the subject “URGENT///COMMUNICATION OF COMPLAINT AND FILING OF LEGAL ACTIONS.” In the content, they inform EASYJET of having filed a

8/19
Claim against the entity before this Agency in relation to your access request.

SEVENTH: On 03/22/2022, at 08:46 hours, EASYJET (***EMAIL.3) responds to the claimant as follows:

“Dear Mr. A.A.A.,

Thank you for your response. First of all, we would like to apologize for the delay in our response and for any misunderstanding regarding your initial claim. However, we believe you are confusing the two issues: your claim and the data protection request. From the Data Protection team, we are trying to complete your request, but we need you to clarify what you are specifically looking for. If you could assist us by telling us what type of information you are seeking, we would be happy to help you. We have been able to ascertain that the Data Protection team has considered your email, of which you have sent us the acknowledgment of receipt, as a claim, and therefore it has been reported to the competent team at that time, which is the Claims team.

Our team (Privacy Team) has not received clarification regarding your data protection request. Please note that our team is responsible for drafting DSARs (Data Subject Access Requests), which are requests for access to the data of subjects, which we disclose when a customer wants to access the information that easyJet has about them. Our team is also responsible for deletions, restrictions, and

corrections of email addresses in our customers' accounts. However, we do not handle claims. We appeal to your understanding of the explanation provided above, and we would be happy to assist you if you have any requests related to the GDPR. Would you like to receive a document with the information that easyJet has about you? Would you like to make a deletion, restriction, or correction of your account? If so, please let us know and we will comply. But, as we have already indicated, please note that claims related to denied boarding are not related to the GDPR, and our team only intends to assist you with your data request. Please respond directly to this email letting us know how we can assist you. Thank you for your cooperation and understanding. Best regards, Data Protection team."

On the same day, at 10:35 hours, the claimant responds to the claimed entity as follows:

"Good morning.

Question posed by the EasyJet data protection team, 03/22/2022

"Would you like to receive a document with the information that easyJet has about you? Would you like to make a deletion, restriction, or correction of your account? If so, please let us know and we will comply. But, as we have already indicated, please note that claims related to denied boarding are not related to the GDPR, and our team only intends to assist you with your data request."

Excerpt from my claim EU Passenger Regulation/data access request GDPR, 12/28/2022 "Finally, let this document serve as a formal request for the purposes of the General Data Protection Regulation or data protection regulations."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/19

corresponding, for the exercise of my right of access to all data relating to my person in the possession of EasyJet."

Enjoy the reported matter. Any dismissal on formal grounds will be appealed to the highest possible instances, posing a risk of fines for EasyJet, with the corresponding negative repercussions that will arise in the media given the public interest of the matter, which in any case will not compensate for the refusal to reimburse the amounts legitimately recognized by the aviation supervisory body.

By the way, it seems that your colleagues in the claims team have not received the ruling from AESA nor my warning regarding the initiation of legal actions. I would appreciate it if you could forward the ruling to them, which I attach below.

Best regards,

A.A.A.

EIGHTH: On 01/04/2022, at 10:22 hours, EASYJET responded to the claimant's right of access, via an email sent from the address ***EMAIL.3 to the claimant (***EMAIL.5) with a copy of the data in its possession.

On the same day, at 12:20 hours, the claimant sent an email to the addresses ***EMAIL.6 and ***EMAIL.7, with the following content:

"Dear B.B.B.

Thank you very much for sending me the requested information. However, we will leave it to the Spanish Agency for Data Protection to determine the adequacy of EasyJet's actions regarding this exercise of the right of access.

However, I would like to point out that the information contained in the report is incorrect. It is not that I want to initiate the corresponding legal actions; I have already formalized them, and the judicial process is already underway. You will be summoned to testify by the competent jurisdictional body shortly.

You can call me at ***TELÉFONO.1 to coordinate the payment of the required amounts and close this matter, or we will see each other in court soon. If you wish, you can forward this information to your colleagues.

Best regards,

A.A.A.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

"2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;"

"7) 'data controller' or 'controller': the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law;"

In the present case, in accordance with the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, since EASYJET collects and retains, among others, the following personal data: name and surname.

EASYJET carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR.

III

Claims made

In relation to the claims made regarding the initiation agreement of the present sanctioning procedure, a response is provided to them.

EASYJET claims to have responded to the claimant on 01/04/2022 by sending all personal information that appears in its systems and the necessary information to address the right in question. It emphasizes that the access request was addressed before receiving the information request and subsequently, the initiation agreement.

As evidence, it provides a copy of the email sent to the claimant at the address ***EMAIL.3.

11/19

the specified date, as well as the information provided in response to the access request.

In this regard, this Agency wishes to point out that Article 12.3 of the GDPR grants the data controller one month from the receipt of the access request to respond to the exercised right, without prejudice to the possibility of extending this period by an additional two months if necessary, provided that the data subject is informed of this. However, in the present case, EASYJET did not properly address the access right exercised by the complainant until 01/04/2022, almost four months after the request was submitted on 28/12/2021.

While it is true that on 30/12/2021 EASYJET responded to the complainant's email in which they exercised their right of access, it is equally true that the entity limited itself to providing a generic response confirming the receipt of the email and that it would be forwarded to the relevant team for consultation. Thus, as already indicated in the initiation agreement of the present sanctioning procedure, it is evident that the complainant was unable to access their personal data, nor was an adequate response provided until April.

EASYJET claims to have received numerous warnings from the complainant regarding the initiation of legal actions, including a mention of the possibility of withdrawing such actions if payment of the amounts claimed in relation to the denial of boarding on a flight of the company was received. In this regard, this Agency wishes to point out that it is not competent to resolve issues that are not related to the matter of personal data protection.

IV

Right of Access

Article 15 "Right of access of the data subject" of the GDPR establishes:

"1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, the right of access to the personal data and to the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee for any further copies requested by the data subject based on administrative costs. When the data subject submits the request by electronic means, and unless otherwise requested by the data subject, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others."

For its part, Article 13 "Right of access" of the LOPDGDD provides that:

"1. The right of access of the affected party shall be exercised in accordance with the provisions of Article 15 of Regulation (EU) 2016/679.

When the controller processes a large amount of data relating to the affected party and the latter exercises their right of access without specifying whether it refers to all or part of the data, the controller may request that the affected party specify the data or processing activities to which the request refers before providing the information.

2. The right of access shall be deemed granted if the data controller provides the affected party with a remote, direct, and secure access system to the personal data that permanently guarantees access to all of it. For these purposes, the communication by the controller to the affected party of how they can access that system shall suffice to consider the request for the exercise of the right as addressed. However, the data subject may request from the controller the information referred to in the aspects provided for in Article 15.1 of Regulation (EU) 2016/679 that are not included in the remote access system.

3. For the purposes established in Article 12.5 of Regulation (EU) 2016/679, the exercise of the right of access on more than one occasion within a period of six months may be considered repetitive, unless there is a legitimate reason for it."

www.aepd.es
28001 – Madrid
sedeagpd.gob.es
13/19

4. When the affected party chooses a means other than the one offered that incurs a disproportionate cost, the request will be considered excessive, and the affected party will bear the excess costs that their choice entails. In this case, the data controller will only be required to satisfy the right of access without undue delay.

In the present case, it is noted that the complainant requested access to their personal data from EASYJET on 28/12/2021, via email sent to the addresses ***EMAIL.2 and ***EMAIL.5. Not only did they indicate in the subject of the email "Claim Regulation (EC) No. 261/2004 - Request for Right of Access" (the underlining is by the Agency), but they also stated at the end of the content, verbatim, "let this document serve as a formal request for the purposes of the General Data Protection Regulation or the corresponding data protection legislation, for the exercise of my right of access to all data relating to me in the possession of Easyjet." In this regard, the email address to which the complainant directed their request is one of the means that EASYJET makes available to affected parties for the exercise of rights under the GDPR, along with a specific request form. This is stated in the privacy policy on their website (***URL.2).

For its part, EASYJET limited itself to sending a generic response on 30/12/2021, confirming the receipt of the email and that it would be forwarded to the appropriate team for consultation. However, after the complainant communicated their intention to the complained entity to file a complaint with this Agency in the absence of a response to their access request, on 17/03/2022, the following day, EASYJET responded indicating that it had not received the access request and asking them to clarify their original request. It was not until 01/04/2022 that EASYJET granted the complainant access to the requested information.

In accordance with the evidence available at this stage of the proposed resolution of the sanctioning procedure, it is considered that the known facts could constitute an infringement attributable to EASYJET for violation of Article 15 of the GDPR.

V

Classification of the infringement of Article 15 of the GDPR

If confirmed, the aforementioned infringement of Article 15 of the GDPR could constitute the infringement classified in Article 83.5.b) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) (...)

a) the rights of the data subjects under Articles 12 to 22; (...)"

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es

14/19

For the purposes of the limitation period, Article 72.1 "Very serious infringements" of the LOPDGDD indicates the following:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following: (...)

k) The obstruction or hindrance or the repeated failure to attend to the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679; (...)"

VI

Sanction for the infringement of Article 15 of the GDPR

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the power to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - or the power to order the data controller or processor to ensure that the processing operations comply with the provisions of the GDPR, where appropriate, in a specified manner and within a specified timeframe - Article 58.2 d).

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

In the present case, taking into account the facts presented and without prejudice to what results from the instruction of the procedure, it is considered that the sanction that should be imposed is an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and detriment they have suffered;
- b) the intentionality or negligence in the infringement;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/19

- c) any measures taken by the data controller or processor to mitigate the damages suffered by the data subjects;

- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32;

- e) any previous infringements committed by the data controller or processor;

- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate any potential adverse effects of the infringement;

- g) the categories of personal data affected by the infringement;

- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;

- i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;

- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;

- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

In relation to point k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," provides:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.

- d) The possibility that the conduct of the affected party may have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

Aggravating circumstances are:

- The duration of the infringement (Article 83.2.a) of the GDPR): However, since this aggravating circumstance was taken into account in the initiation agreement of the current sanctioning procedure for not having responded to EASYJET's right of access, it is considered that the severity of this is diminished as it has been proven that the right exercised by the complainant was attended to, although this occurred almost four months after the deadline established in the current regulations.
- The connection of the infringer's activity with the processing of personal data (Article 76.2.b) of the LOPDGDD): EASYJET is an entity that processes personal data systematically and continuously and must exercise extreme care in complying with its obligations regarding data protection.

The balance of the circumstances considered allows for an initial assessment of a fine of €10,000 (ten thousand euros) for the infringement of Article 15 of the GDPR.

In light of the above, the following

PROPOSAL FOR RESOLUTION

is issued by the Director of the Spanish Agency for Data Protection against EASYJET AIRLINE COMPANY LIMITED, with NIF N0066592G, for an infringement of Article 15 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €10,000 (ten thousand euros).

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will entail a reduction of 20% of the amount thereof. With the application of this reduction, the sanction would be set at €8,000 (eight thousand euros) and its payment will imply the termination of the procedure. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. In the event that it opts to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, it must do so

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/19

effective by depositing it into the restricted account no. IBAN: ES00 0000 0000 0000

0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. Furthermore, you must send the proof of deposit to the General Subdirectorato of Inspection to proceed to close the file. Therefore, you are notified of the above, and the procedure is brought to your attention so that within TEN DAYS you may state whatever you consider in your defense and present the documents and information you deem pertinent, in accordance with Article 89.2 of the LPACAP.

Therefore, you are notified of the above, and the procedure is brought to your attention so that within TEN DAYS you may state whatever you consider in your defense and present the documents and information you deem pertinent, in accordance with Article 89.2 of the LPACAP.

926-170223

C.C.C.

INSPECTOR/INSTRUCTOR

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es

18/19

ANNEX

Index of the file EXP202204836

21/03/2022 Complaint from A.A.A.

03/06/2022 Transfer of complaint to EASYJET AIRLINE SPAIN, S.E.E.

21/06/2022 Communication to A.A.A.

05/07/2022 Response to request from EASYJET AIRLINE CO LTD

10/03/2023 Opening to AINHOA BILBAO RANDEZ

16/03/2023 Info. Claimant to A.A.A.

30/03/2023 Document from EASYJET AIRLINE CO LTD

05/05/2023 Document from EASYJET AIRLINE CO LTD

>>

SECOND: On November 14, 2023, the responding party has proceeded to pay the sanction in the amount of 8000 euros making use of the reduction provided for in the resolution proposal transcribed above.

THIRD: The payment made entails the waiver of any action or appeal in the administrative route against the sanction, in relation to the facts referred to in the resolution proposal.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/19

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when a pecuniary sanction and another non-pecuniary sanction can be imposed but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the

procedure and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202204836, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to EASYJET AIRLINE COMPANY LIMITED.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

968-171022

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es